

NON-DISCLOSURE AGREEMENT

TechCorp Solutions Pvt. Ltd. & StartupXYZ Technologies

Effective Date: 1st June 2026 | Agreement No: TCS-NDA-2026-047

1. PARTIES

This Non-Disclosure Agreement ('Agreement') is entered into between TechCorp Solutions Pvt. Ltd., a company incorporated under the Companies Act 2013, with its registered office at 14th Floor, Cyber Tower, Hitech City, Hyderabad – 500081 ('Disclosing Party'), and StartupXYZ Technologies, a sole proprietorship registered at 42, 3rd Cross, Koramangala, Bengaluru – 560034 ('Receiving Party').

2. PURPOSE

The Receiving Party may receive Confidential Information solely for the purpose of evaluating a potential business partnership involving integration of TechCorp's enterprise APIs into StartupXYZ's SaaS platform ('Permitted Purpose').

3. DEFINITION OF CONFIDENTIAL INFORMATION

■ RISK CLAUSE — OVERBROAD SCOPE: 'Confidential Information' shall mean ALL information, whether written, oral, digital, or observed, disclosed by the Disclosing Party to the Receiving Party, including but not limited to: trade secrets, source code, business strategies, customer data, pricing models, and any information the Receiving Party could reasonably understand to be confidential — whether or not it is explicitly marked as such. This definition intentionally excludes any carve-outs for publicly available information or information independently developed by the Receiving Party.

4. OBLIGATIONS

The Receiving Party shall: (a) hold all Confidential Information in strict confidence using no less than the same degree of care as it uses for its own confidential information, but in no event less than reasonable care; (b) not disclose any Confidential Information to third parties without prior written consent; (c) use Confidential Information solely for the Permitted Purpose; (d) immediately notify the Disclosing Party of any unauthorised disclosure.

5. TERM

■ RISK CLAUSE — INDEFINITE TERM: This Agreement shall remain in full force and effect in PERPETUITY. There is no expiry date or sunset provision. The obligations of confidentiality shall survive indefinitely beyond any termination of the business relationship between the parties. This clause shall be interpreted to mean that the Receiving Party can never disclose or use the Confidential Information for any purpose other than the Permitted Purpose, without any time limit.

6. INTELLECTUAL PROPERTY ASSIGNMENT

■ RISK CLAUSE — AGGRESSIVE IP GRAB: Any invention, improvement, discovery, or work product conceived, developed, or reduced to practice by the Receiving Party or its employees during the term of this Agreement, whether or not using Confidential Information, and whether or not made during business hours,

shall be deemed to be the exclusive property of TechCorp Solutions Pvt. Ltd. The Receiving Party hereby assigns all right, title, and interest in such work products to the Disclosing Party, including all intellectual property rights therein.

7. NO REVERSE ENGINEERING

The Receiving Party shall not decompile, disassemble, reverse engineer, or attempt to derive the source code of any software, algorithm, or product forming part of the Confidential Information.

8. REMEDIES

The Receiving Party acknowledges that breach of this Agreement will cause irreparable harm for which monetary damages would be inadequate. The Disclosing Party shall be entitled to seek injunctive relief without the requirement to post bond or prove actual damages.

9. GOVERNING LAW & JURISDICTION

This Agreement shall be governed by the laws of India. Any dispute shall be subject to the exclusive jurisdiction of the courts of Hyderabad, Telangana, India.

10. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the parties and supersedes all prior discussions, representations, or agreements relating to the subject matter hereof.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

TechCorp Solutions Pvt. Ltd.

StartupXYZ Technologies

Authorised Signatory

Name: _____

Designation: _____

Date: _____

Authorised Signatory

Name: _____

Designation: _____

Date: _____